

PART II.

the detraction of his public justice. But this is left to the discretion of good and temperate times. And I desire to observe one difference, which standeth with the rules of law and reason, and which, under favour, I have ever conceived to be just, That upon the speaking of words, although they be against a great person, the defendant may justify them as true; as in all actions *de scandalis magnatum*, which are as properly to be sued in the Star Chamber as in any other court, and he shall be there received to make the truth appear. But if he put the scandal in writing, it is then past any justification, for then the manner is examinable and not the matter. In some cases a libel shall not be examined; as where a libel is made against me, and I hold it more prejudice to me to have it published than if it were concealed; as it was held in *Lamb's Case*, of which I shall take occasion to write a word or two in another place.

§. XII. OF CONSPIRACY AND FALSE ACCUSATION.

I WILL conclude the particular offences which I shall speak of with this great offence of *conspiracy*, rarely heard of in former times, but in our age grown frequent and familiar. And herein some questions have arisen; as in the Case betwixt *Rocheſter* and *Solm* it was questioned, Whether if the party is *legitimo modo acquietatus*, he may sue in this court for conspiracy? for *sir Edward Coke* would have maintained, that after his acquittal he was to prefer his indictment at the common law, where conspirators were to have their villanies judged. But the *lord Egerton* did gravely confute that opinion, and open the jurisdiction of this court, manifesting that notwithstanding the party might have his indictment, yet that excludeth not the court of jurisdiction; for in all cases of force or fraud an indictment lieth at the common law; yet this court will proceed for the king also. But afterwards, the evidence

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